Subcontractor Teaming Agreement

between

Siemens Industry, Inc., Building Technologies Division
1000 Deerfield Parkway
Buffalo Grove, IL 60089
USA

- hereinafter referred to as "SIEMENS" -

and

Origin, Inc.
5588 Chamblee Dunwoody Rd.
Suite 136
Atlanta, GA 30338
USA

- hereinafter referred to as "Subcontractor" -

And hereinafter collectively referred to as "Parties".

This Teaming Agreement states the intent of the Parties to work together and team with each other to pursue a specific project in an independent, but coordinated manner.

Teaming together and submitting a proposal utilizing the combined skills of the parties will offer the Prospective Client the most advantageous combination of capabilities to achieve the Project objectives.

Given the above intent, both Parties acknowledge the following common understandings with respect to the purchase by SIEMENS and sale by Subcontractor of services in the course of dealings between the Parties with respect to a specific project.

Services Covered	:	Provide utility billing system integration for the replacement water meter system (Exhibit A lists anticipated Scope of Services).
Project	:	The teaming agreement is specific to the City of Jackson Water Meter Performance Contract Project at Jackson, MS for the customer City of Jackson. This Agreement will continue until the project is either awarded to SIEMENS or SIEMENS notifies Subcontractor that it intends to end the teaming relationship by terminating the Agreement with fifteen (15) days advance written notice.
Exclusivity	:	Subcontractor agrees to work exclusively with SIEMENS on the project solution during the period this Agreement is in effect. For the same period, SIEMENS agrees to work exclusively with the Subcontractor with respect to the Services Covered specific to the Project. This Agreement is not intended to preclude either party from independently submitting proposals or from performing work

		unrelated to the Project.
Level of Business Commitment	:	Parties will be committed to scope of services outlined in Attachment A.
Confidentiality	:	The Mutual Non-Disclosure Agreement entered into between SIEMENS and Subcontractor dated January 12, 2011 (the "NDA") is incorporated herein by reference and applicable hereto. A true and correct copy of the NDA is attached hereto as "Attachment A".
Method of Collaboration	:	SIEMENS shall issue to Subcontractor documentation related to the scope of work with appropriate cross-references to any existing plans and specifications under a Request for Proposal (RFP) process that will state a due date for Subcontractor's response. Upon receipt of the Siemens RFP, the Parties shall communicate by phone, email, fax or face-to-face meetings to share information, clarify Prospective Client requirements and confirm mutual understandings of the nature of the Project. The parties agree that SIEMENS shall take the lead role, have overall communication responsibilities with the Prospective Client, control all interface activities with the Prospective Client, and that Subcontractor is not to contact the Prospective Client without SIEMENS' prior written consent.
Price Offer Submission	:	Subcontractor shall submit to SIEMENS a not to exceed LUMP SUM Price offer for the services to SIEMENS with breakout pricing as delineated in the Siemens RFP by the due date in a format specified by SIEMENS. Additional breakout pricing shall be provided as requested by SIEMENS to facilitate scope negotiations with the Prospective Client.
Price Offer Due Diligence	:	To confirm the reasonableness of the price offer from Subcontractor, SIEMENS shall use historical benchmark information as well as independent market pricing analyses to form the basis for good faith pricing negotiations between the Parties.
Purchase Rights	:	With respect to non-labor related portions of Subcontractor's price, i.e., pricing for equipment and material, SIEMENS reserves the right to purchase such items directly using SIEMENS' market leverage and contracts. Alternatively SIEMENS may elect to have Subcontractor purchase such items using SIEMENS' pricing. In such instance, the Parties shall negotiate an acquisition and handling fee to be paid to the Subcontractor for the purchasing and logistics activities.
Price Offer Validity	:	Subcontractor quotations shall be valid for the term of the implementation period to SIEMENS (limited to Jackson Redevelopment Authority customer).
Pre-Award Costs	:	Each Party will bear all costs, risks and liabilities incurred by it arising out of its obligations and efforts under this Agreement

		during the pre-proposal and proposal periods, which are defined as the periods up to the award of a prime contract from the Prospective Client to either SIEMENS or the Subcontractor. Neither Party shall have any right to any reimbursement, payment or compensation of any kind from the other during the period prior to the award of the subcontract.
Transaction Documents	:	If SIEMENS does elect to contract with the Subcontractor, the transaction document will consist of a Project specific subcontract document or, the Parties, in anticipation of future similar work, may elect to create a Master Subcontract document using Work Orders therein defined, to cover individual project transactions. The subcontract shall be subject to applicable laws, regulations, and mutual agreement on pricing and other subcontract terms and conditions, including those provisions of SIEMENS' contract with Prospective Client which are necessarily or appropriately passed down in the subcontract. SIEMENS and Subcontractor shall, as between each other, be solely responsible for their respective work under the prime contract. The subcontract shall contain mutually acceptable cross indemnities and releases solely between the parties with respect to their work under the subcontract.
Payment Terms	:	Payment terms shall be "net 90 days". Subcontractor may request information on receiving payments in a shorter time period through the Siemens Financing program.
Relationship	:	This Agreement shall not constitute, create give effect to, or otherwise recognize a joint venture, partnership, or formal business entity of any kind, and rights and obligations of the parties shall be limited to those expressly set forth herein. This Agreement shall not be construed as providing for the sharing of profits or losses, if any, arising out of the efforts of any or all of the Parties as such would be subject to any subcontract between the Parties. The Parties agree that no legal relationship of any kind exists as a result of this Agreement other than the covenants expressly contained herein. Neither party shall have authority to create any obligations for the other except to the extent stated herein. The Parties agree that this Agreement may be made known to the Prospective Client, and if required by law, shall be made known to the Prospective Client.
Term	:	This Agreement, shall expire 18 months from the date hereof unless terminated earlier by one of the following events: a. The Prospective Client cancels the procurement or withdraws the Request for Proposal;

b. The Prospective Client awards the prime contract to an entity other than SIEMENS;

c. The parties dissolve this Agreement by mutual consent;

d. One of the arties petitions for bankruptcy or reorganization under the bankruptcy laws, or makes an assignment for the benefit of creditors;

e. Material breach of the provisions of this Agreement or other valid, compelling reason exists for either of the parties to terminate the Agreement; e.g., debarment, suspension, or criminal investigation of the other party; change in legal status due to merger to sale of the other party; grossly unsatisfactory performance of the other party, etc; or,

f. SIEMENS exercises its right to terminate the Agreement with fifteen days prior written notice.

Publicity	:	No publicity, press releases or advertising relating to the Agreement shall be released by either party without the other party's prior written approval.
Assignment	:	Neither party shall assign, nor in any manner transfer, its interests or any part thereof, in this Agreement to others, except that either party may assign its interests to its subsidiaries or other affiliated companies.
Waiver	:	The failure of either party to enforce at any time of the provisions of this Agreement, or to require at any time performance by the other party of any of the provisions hereof, shall in no way be construed to be a waiver of such provision, nor in any way affect the validity of this Agreement or any part thereof, or the right of any of the parties thereafter to enforce each and every provision hereof.
Applicable Law	:	The validity and performance of this Agreement shall be governed by the laws of the State of Illinois.

Acknowledged and Agreed:

Siemens Industry, Inc.		**Origin, Inc.**	
Signature:		Signature:	
Name:	Scarlett Karas	Name:	Mark Black
Title:	Procurement Mgr. Gulf Coast	Title:	President
Date:	11/12/2011	Date:	

Exhibit A
Scope of Services

Provide the following services:

- Analysis of current CIS system
- Identify possible software companies
- Provide integration and Implementation of the System
- Software Support

SIEMENS

AGREEMENT NO. COJ WM

MUTUAL NONDISCLOSURE AGREEMENT

Origin, Inc. **(hereinafter referred to as "Company"), with a principal place of business at:**	**BUILDING TECHNOLOGIES DIVISION OF SIEMENS INDUSTRY, INC. (hereinafter referred to as "Siemens"), with a principal place of business at:**
ADDRESS: 5588 Chamblee Dunwoody Rd., Ste 136	**ADDRESS:** 100 Deerfield Parkway
CITY: Atlanta **STATE:** GA **ZIP**: 30338 **USA**	**CITY:** Buffalo Grove **STATE**: IL **ZIP:** 60089 **USA**

This Mutual Nondisclosure Agreement ("Agreement") is entered into between Company and Siemens. Siemens and Company may be referred to in this Agreement individually as a "Party" and together as the "Parties."

WHEREAS, the Parties intend to engage in discussions or conduct business activities pertaining to Project: City of Jackson Water Meter Performance Contract Project (the "Business Purpose");

WHEREAS, pursuant to the terms and conditions stated in this Agreement, a Party may be the recipient of information that is considered confidential and proprietary information to the other Party;

NOW THEREFORE, the Parties hereto agree as follows:

1. **Definitions**

   1.1 "Confidential Information" means any confidential, proprietary or other business or technical information, or materials of Discloser (as hereinafter defined) received by Recipient (as hereinafter defined) under this Agreement in any form, marked or unmarked, which is furnished or revealed by the Discloser to the Recipient and described or identified at the time of disclosure as being confidential or proprietary, or alternatively, whose confidential or proprietary nature is apparent from the context of the disclosure or the contents or nature of the information disclosed

   1.2 "Confidentiality Period" is the time period during which the Recipient is required to maintain the obligations of confidentiality and limited use defined in this Agreement. The Confidentiality Period for this Agreement shall be 3 years after termination of the Disclosure Period.

   1.3 "Discloser" means the Party that discloses Confidential Information to the other Party under this Agreement.

   1.4 "Disclosure Period" is the time period during which any disclosure of Confidential Information binds the Parties under the terms of this Agreement. The Disclosure Period for this Agreement shall begin on the Effective Date and shall automatically terminate 1 year(s) after the Effective Date or may be terminated at any time by either Party by providing thirty (30) days prior written notice.

   1.5 "Effective Date" is ***January 12, 2011***, which date shall be the beginning of the Disclosure Period.

   1.6 "Recipient" means the Party that receives Confidential Information of the other Party under this Agreement.

2. **Obligation of Confidentiality and Limited Use**. The Recipient will prevent the disclosure and protect the confidentiality of the Confidential Information of the Discloser during the Disclosure Period and Confidentiality Period by (a) using the same means it uses to protect its own confidential information, but in any event not less than reasonable means, and (b) using the Discloser's Confidential Information only in connection with the Business Purpose. The Recipient will not use the Discloser's Confidential Information for the benefit of, or transmit the Discloser's Confidential Information to, any third party without first obtaining the express written consent of the Discloser. The Recipient shall not copy, distribute or disclose this Agreement and the other Party's Confidential Information except to those employees, officers, directors, agents or Affiliate (as hereinafter defined) of the Recipient ("Representatives") who have a need to know such Confidential Information as required to accomplish the Business Purpose, provided such Representatives are advised of and agree to abide by the confidentiality obligations set forth in this Agreement. Compliance by Representatives with the confidentiality and use obligations in this Agreement will remain the responsibility of Recipient and both Recipient and Representatives shall be liable for any breach of this Agreement by Representatives. For purposes of this Agreement, "Affiliate" shall mean a corporation, company or other entity or Division, directly or indirectly owned or controlled by, or under common control of, the same ultimate parent company as the Recipient, and shall include the ultimate parent company. Neither Party will make or issue, or cause to be made or issued, any announcement or statement regarding activities under this Agreement for dissemination to the general public or any third party without the prior written consent of the other Party.

3. **Exclusions**. Confidential Information will not include any information or data which:

   (a) was or becomes generally available to the public through no breach of this Agreement by the Recipient or Recipient's Representatives;

   (b) was rightfully in the Recipient's or Representatives' possession prior to receipt from the Discloser;

   (c) becomes rightfully available to the Recipient or Representatives from a source other than the Discloser who is free to lawfully disclose such information to the Recipient;

   (d) is approved for release by written agreement of Discloser: or

(e) is independently developed by the Recipient or Representatives, as evidenced by written records, without the use of the Discloser's Confidential Information.

Confidential Information shall not be deemed to be in the public domain merely because any part of the Confidential Information is embodied in general disclosures or because individual features, components or combinations thereof are now or become known to the public.

If Confidential Information is required to be disclosed by the Recipient by a governmental agency or law, such Confidential Information may be disclosed pursuant to such requirement so long as the Recipient provides the Discloser with written notice of the required disclosure promptly upon receipt of notice, to the extent such notice is permitted by law, and cooperates with the Discloser in any efforts to limit the nature and scope of such required disclosure.

4. **No Further Obligation**. Neither the receipt of Confidential Information nor discussions held in connection with the Business Purpose will prevent either Party from pursuing similar discussions or transactions with third parties, or obligate a Party to continue discussions with the other Party or to take, continue or forego any action relating to the Business Purpose. Any proposals, estimates or forecasts provided by a Party to the other Party will not constitute commitments.

5. **Refusal**. Either Party shall have the right to refuse to accept any information under this Agreement, and any information disclosed despite such a refusal is not Confidential Information and is not covered by the confidentiality obligations of this Agreement. Nothing herein shall obligate either Party to disclose to the other Party any particular information.

6. **Return of Confidential Information**. Confidential Information shall remain the property of the Discloser. Within thirty (30) days of receipt of a written request from the Discloser setting forth the Confidential Information to be returned, the Recipient will return the requested Discloser's Confidential Information, including all copies thereof, or certify in writing that all of the Discloser's Confidential Information and all copies thereof have been returned or destroyed. Notwithstanding the above, Recipient may maintain a single copy of the Confidential Information in Recipient's legal archives for the sole purpose of determining the scope of its rights and obligations incurred under this Agreement.

   The provisions of this Section 6 shall not apply to copies of electronically exchanged Confidential Information made as a matter of routine information technology backup and to Confidential Information or copies thereof which must be stored by the Recipient or its Representatives according to provisions of mandatory law or to the Recipient's or its Representatives' internal compliance guidelines, provided that such Confidential Information or copies thereof shall be subject to an indefinite confidentiality obligation according to the terms and conditions set forth herein until returned and/or destroyed, as the case may be.

7. **Remedies**. Upon any actual or threatened violation of this Agreement by the other Party, the Discloser may be entitled to seek preliminary and other injunctive relief against such violation, in addition to any other rights or remedies which such Party may have at law or in equity.

8. **No Warranties or Further Rights**. Neither Party makes any representations or warranties, express or implied, with respect to any of its Confidential Information. Nothing contained in this Agreement will be construed as granting or conferring any rights by license or otherwise in either Party's Confidential Information, except for the use of such Confidential Information as expressly provided in this Agreement. In no event will either party be responsible for indirect, incidental, consequential, exemplary, punitive or special damages of the other Party including, but not limited to, loss of income, profit or savings even if such Party has been advised of the possibility of such damages in advance, and all such damages are hereby disclaimed.

9. **Export Restriction**. Confidential Information provided pursuant to this Agreement may be subject to U.S. government laws, regulations, orders, embargoes or other restrictions regarding export or re-export of U.S. origin technical data or other items, or derivatives of such items. Each Party agrees (a) to comply with all such laws or restrictions and (b) to not export or re-export any such items received pursuant to this Agreement to a destination or end user for which applicable law, including U.S. law, requires an export license or other approval without first having obtained such license or approval. Each Party will reasonably cooperate with the other to assure compliance with this Section 9.

10. **Notice.** All notices or reports required or permitted under this Agreement shall be in writing and shall be delivered by personal delivery, facsimile transmission, a nationally recognized overnight delivery service, by certified or registered mail, return receipt requested, or by electronic mail to be confirmed in writing delivered by one of the methods described herein, and shall be deemed given upon personal delivery, electronic confirmation of electronic mail or facsimile transmission, or signature evidencing receipt of overnight delivery or registered mail, as applicable. Notices and communications between Company and Siemens shall be in English to the following addresses of the Parties or to such other addresses as the Party concerned may subsequently notify in writing to the other Party:

If to Siemens:

Siemens Industry, Inc.
Building Technologies Division
ATTENTION: Scarlett Karas
ADDRESS: 150 Teal St Ste 100
CITY: St. Rose STATE: LA ZIP: 70087
FAX: 504-464-6800

If to Company:

COMPANY: Origin, Inc.
ATTENTION: Mark Black
ADDRESS: 5588 Chamblee Dunwoody Road, Ste. 136
CITY: Atlanta STATE: GA ZIP: 30338
FAX: 404-725-0080 TEL: 404-725-0080

With a copy to:

ATTENTION: Legal Department/General Counsel
ADDRESS: 100 Deerfield Parkway
CITY: Buffalo Grove STATE: IL ZIP: 60089
FAX:

With a copy to:

ATTENTION:
ADDRESS:
CITY: STATE: ZIP:
FAX:

11. **Counterparts.** This Agreement may be signed in one or more counterparts, including facsimile or electronic portable document format (PDF) copies, each of which shall be deemed one and the same original.

12. **Miscellaneous**.
    (a) If any provision of this Agreement is held to be invalid, illegal or unenforceable, the validity, legality and enforceability of the remaining provisions will not in any way be affected or impaired, and such provision will be deemed to be restated to reflect the original intentions of the Parties as nearly as possible in accordance with applicable law.
    (b) The failure of a party hereto at any time or times to require performance of any provision hereof shall in no manner affect its right at a later time to enforce the same. Waiver of any breach or violation of this Agreement shall not constitute a waiver of subsequent breach or violation of the same or different kind.
    (c) This Agreement will be governed by and construed in accordance with the laws of the State of Delaware without regard to its conflict of law rules.
    (d) This Agreement will be binding on the Parties and their successors and permitted assigns. This Agreement may not be assigned to any third-party by either Party without the prior written consent of the other. Any assignment without such written consent will be void. Notwithstanding the forgoing, Siemens may assign or transfer its rights and obligations under this Agreement, in whole or in part, to an Affiliate, without the consent of Company. Either Party may assign and transfer its and obligations under this Agreement in connection with a merger, consolidation, or a sale or transfer of all or substantially all of the assets to which this Agreement relates, provided that the assignee assumes all obligations of the assignor hereunder.
    (e) Neither Party will act or have the authority to act as an agent of the other Party for any purpose whatsoever.
    (f) Each Party warrants and represents that it possesses all necessary powers, right and authority to lawfully make the disclosures subject to this Agreement.
    (g) This Agreement may be modified only by a written instrument executed by both Parties.

13. **Entire Agreement**. This Agreement sets forth the entire understanding of the Parties with respect to the subject matter of this Agreement and supersedes any previous or contemporaneous agreements, understandings or communications, whether written or oral, relating to such subject matter.

The Parties have duly executed and delivered this Agreement by their duly authorized representatives as of the respective dates set forth below.

BUILDING TECHNOLOGIES DIVISION OF SIEMENS INDUSTRY, INC. ("SIEMENS")

Signature: _____

Printed Name: Scarlett Karas

Title: Procurement Manager Gulf Coast

Date:

ORIGIN, INC. ("COMPANY")

Signature: _____

Printed Name: Mark Black

Title: President

Date: